

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002996

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARITZA RAMIREZ

vs.

DEFENDANT: BUCHANAN
TECHNOLOGIES, INC.

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL

RULING

On June 3, 2026, Plaintiff filed a motion seeking preliminarily approval of a wage and hour class action brought by Plaintiff on behalf of all other similarly situated current and former non-exempt employees and independent contractors of Defendant Buchanan Technologies, Inc. (“Defendant”). The Operative Complaint alleges violations of the California Labor Code and Wage Orders including that Defendant (i) failed to pay all overtime wages owed; (ii) failed to provide meal periods, or premium pay for non-compliant meal periods; (iii) failed to authorize and permit rest periods, or premium pay for non-compliant rest periods; (iv) failed to pay minimum wages; (v) failed to pay final wages on time; (vi) failed to issue compliant wage statements; (vii) failed to reimburse business expenses; and (viii) for violations of California Business & Professions Code Section 17200, et seq., based on the aforementioned California Labor Code violations.

The Class is composed of approximately 448 current and former non-exempt employees and independent contractors, whether hourly paid, commission-based or salaried, who worked for Defendant Buchanan in the State of California at any time from November 28, 2019, through January 14, 2026 (the “Class Period”).

Defendant stipulates to settlement as a class action, and does not file an opposition to Plaintiff’s request. The parties did not file a joint request for settlement approval.

The terms are:

1. Defendant will pay a maximum of \$700,000.00, of which, \$411,500 will be distributed on pro rata basis according to the total worked by each putative class member. There are approximately 448 employees who will benefit from the settlement.
2. The settlement period is November 28, 2019, through January 14, 2026.
3. No claims process is required. The putative class members are not required to submit a claim to be issued a settlement payment. The costs for claim administration are estimated at 11,000.

4. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties.
5. The release is limited to: (a) failure to pay all overtime wages owed; (b) failure to provide meal periods, or premium pay for non-compliant meal periods; (c) failure to authorize and permit rest periods, or premium pay for non-compliant rest periods; (d) failure to pay unpaid minimum wages; (e) failure to pay final wages on time; (f) failure to issue accurate, itemized wage statements; (g) failure to timely pay all wages due upon separation of employment; and (h) claims of unfair business practice limited to the wage claims brought in the complaint.
6. Funds available after claims administration are proposed to be directed to the State of California's Unclaimed Property Fund.
7. Cost of settlement administration shall be up to \$25,000 of the settlement fund;
8. Enhancement/Service Award to Plaintiff: Defendant will not oppose the application for a service award of up to \$7,500 for the Plaintiff, to be paid from the settlement fund;
9. Fees and Costs: Defendant will not oppose Counsel's application for fees of up to one third (35%) of the Gross Settlement Amount (currently estimated to be \$245,000). Class counsel supports this payment by stating in the declaration of Ali Sachani that "[t]his percentage is consistent with rates Class Counsel charges in comparable wage-and-hour class actions." This appears to be a contingency fee. Counsel does not provide the court with its lodestar for a comparison relative to the reasonableness of the rate.

The class settlement amount is approved. The terms, however, require clarification before notice of settlement is distributed to the class.

A. Contingency attorneys' fees vs. compensable hours worked (Lodestar).

Counsel shall be prepared to better justify the requested contingency fee of \$245,000 by providing the lodestar of contemporaneously recorded hours worked up to the date of settlement. The request also does not indicate if the contingency fee award contains a fee multiplier. A multiplier may be applicable if there was protracted li

Moreover, there is no cost analyses provided to justify the requested costs of \$25,000.

B. Fund Residue.

The parties shall meet and confer to determine a more appropriate recipient of residue funds other than the state common fund. The residue fund recipient should be more directly tied to the purpose of the settlement. Here, as described in the unopposed request for approval of the settlement, the settlement vindicates the rights of employees who the motion describe as not being provided with property wages and who were denied rest and meal breaks. The parties are ordered to meet and confer to discuss an award of the residual settlement to a non-profit organization or collegiate educational program with a mission statement more closely aligned, or as near as possibly aligned, to the goal of the settled wage and hour lawsuit.

Class notices must be modified to address how attorneys' fees will be determined and identify a more appropriate *cy pres* recipient.

Appearances are required.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004467

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SARA CHEZKIAN

vs.

DEFENDANT: DANIEL L. DAMATO

NATURE OF PROCEEDINGS: 1) MOTION – SET ASIDE/VACATE
2) MOTION – RELIEVE COUNSEL

RULING

There are two motions on calendar.

I. Motion to be Relieved as Counsel

Counsel for Plaintiff Sara Chezgian, Benjamin Graves, Esq. files a Motion to be Relieved as Counsel. The court has reviewed the declaration in support of the motion filed by Mr. Graves. The motion is unopposed and it is GRANTED.

II. Motion to Set Aside and Vacate Judgment

Plaintiff Chezgian prevailed after a trial on the merits on February 24, 2026, with this Court issued a Judgment After Trial for \$267,400.00, and awarded pretrial interest of \$72,732.80 for a final judgment amount of \$340,132.80. Plaintiff filed a post-trial Motion for Recovery of Attorney's Fees and costs on March 2, 2026. The court granted the request, awarding plaintiff \$116,206.03 as recoverable litigation fees and costs.

The court minutes indicate the trial began at 10 am in department L on February 24, 2026, and concluded at 3 pm. A total of 3 witnesses were called. At the conclusion of trial, the plaintiff presented a demand for damages and the court awarded \$267,000.

Plaintiff argues in her motion to set aside the judgment that Mr. Graves attempted to coerce Plaintiff into accepting a settlement of approximately \$140,000 on the eve of trial. On this record, the issue of what occurred on the eve of trial is moot because the Plaintiff was awarded \$267,000 after a full presentation of evidence by both parties.